

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY
AUTHORITY, QUETTA.

PRC APPEAL No.33 & 34/2025

M/S Agha Construction Company

Through its Authorized person

Nawaz Ibrahim

...Appellant

VERSUS

- 1) Chief Secretary, Government of Balochistan.
- 2) Secretary, Irrigation Department, Government of Balochistan
- 3) Executive Engineer, Irrigation Department, Hub
- 4) Chairman Grievance Redressal Committee, Irrigation Department
at Hub.
- 5) M/s L.M & Sons.

...Respondents

APPEAL UNDER RULE 56-A AGAINST THE TSE No.
252608820803 AND TSE NO. 252608820933

Decision Date: 05-11-2025

The Appellant has filed this Appeal challenging the decision of the CRC dated 16th October 2025 along with the evaluation report uploaded on the Authority's website with the prayer to set aside the CRC decision and evaluation report dated 16-09-2025 and further prayed that the Procuring Agency may kindly be restrained from proceeding ahead by ordering for status quo.

Brief facts of the case are that the Appellant in capacity of a bidder states to have participated in the bidding process published through NIT Vide PRQ No. 767/22-08-2025. The Appellant states that the

Appellant participated in the above TSE mentioned in the above PRQ and after fulfilling all the requirements submitted his bid.

The bidder states to have duly participated in the bidding process and submitted his bidding documents but when the evaluation reports were uploaded on the Authority's website the Appellant was disqualified on the ground of non-submission of similar nature assignment and submission of turnover of only one year while the requirement of submission of turnover was three years.

That the appellant being aggrieved of the act of his disqualification by the Procurement Committee preferred to file his Grievance Application before the Chairman Complaint Redressal Committee and the Complaint Redressal Committee passed the decision on 16th October 2025. After that the appellant filed a review application before the Chief Engineer, Irrigation Department dated 22nd October 2025 which is still pending and the Chief Engineer, Irrigation Department did not pass any order on the same.

After that, on 4th of November 2025 the Appellant preferred this Appeal before the Procurement Review Committee.

Upon being inquired the Appellant stated that the Procuring Agency in Evaluation Criteria had asked for turnover of subsequent last three years, however the Appellant had submitted the Turnover of 2022, 2023 and 2024 but did not submit the turnover of year 2025. Non submission of the turnover of 2025 shows the fault on the part of the Appellant himself therefore the disqualification of the Appellant on account of non-submission of turnover is justified.

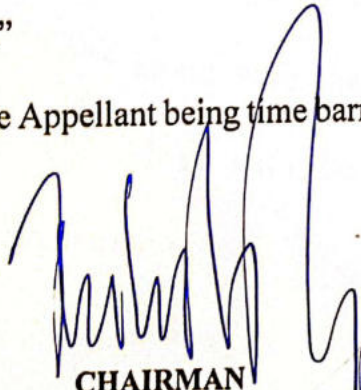
Furthermore, the CRC passed its decision on 16th October 2025 and the time limit for filing of the Appeal under BPP Rule 56-A, Sub Rule 1 is five days. Which is reproduced herein below.

"If the Grievance Redressal Committee fails to arrive at a decision within 18 days, or if the bidder is not satisfied with the decision of the Grievance Redressal Committee, they may lodge an appeal to the Review Committee within five days of the completion of eighteen days or decision of the Grievance Redressal Committee whatever the case may be".

The Appellant, however, filed this Appeal before the Procurement Review Committee after 18 days of decision of CRC dated 16/10/25 which is beyond the time limit specified for filing of an Appeal before the Procurement Review Committee. Furthermore, the Appellant neither filed any application for condonation of delay nor sought any sufficient cause in his main Appeal for such a delay. However, the Appellant stated that he had filed his review Application before the Chief Engineer to revisit the decision of the CRC on account of which he waited for the review of the decision of CRC by Chief Engineer and did not file his Appeal under Rule 56-A. It is important to mention here that there is no provision of review of the decision of the CRC in BPPRA Rules and approaching a wrong forum is the fault of the Appellant which cannot be considered a reasonable ground for condonation of the delay according to the maxim:

"Law is for the vigilant not for the indolent"

On the basis of above facts, the Appeal of the Appellant being time barred is dismissed.


CHAIRMAN
Public Procurement Review Committee
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)
6/11/2025